

# **My Life Services, Inc.**

## **Policy: Paid 10-Minute Rest Breaks**

### **Purpose**

My Life Services, Inc. is committed to providing employees with paid rest breaks in accordance with applicable California law while maintaining safe, uninterrupted services for the individuals we support. This policy establishes employee and supervisor responsibilities regarding the scheduling, taking, and documentation of paid rest breaks.

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### **Policy**

Eligible non-exempt employees are authorized and encouraged to take one paid, duty-free ten (10) minute rest break for every four (4) hours worked or major fraction thereof, whenever practicable.

Whenever possible, rest breaks should be scheduled near the middle of each work period. Paid rest breaks are considered hours worked, and employees are not required to clock out.

Because My Life Services, Inc. provides community-based services in homes, apartments, businesses, and throughout the community, the timing of rest breaks may vary depending upon client needs, schedules, transportation, community activities, emergencies, and operational requirements.

Supervisors are responsible for making reasonable efforts to ensure employees have the opportunity to take all authorized paid rest breaks.

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### **Definition of a Paid Rest Break**

A paid 10-minute rest break is a period during which an employee is relieved of assigned work responsibilities and is free to use the time for their own personal comfort and convenience while remaining on paid status.

During a paid rest break, employees are not expected to perform work activities, including but not limited to:

- Providing active instruction, coaching, or support to a client.
- Completing documentation or data entry.

- Responding to routine work-related telephone calls, text messages, emails, or other communications.
- Transporting clients.
- Performing administrative duties.
- Completing work assignments for supervisors or coworkers.

Because many individuals served by My Life Services, Inc. are capable of living and functioning independently, employees may remain in the general vicinity of a client during a paid rest break provided the employee has been relieved of assigned work responsibilities and the client does not require active supervision, intervention, or services during that period.

If an emergency or unforeseen client need requires an employee to return to work before completing the break, the employee shall immediately resume work and notify their supervisor as soon as practical so the interruption can be reviewed and documented.

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## **Employee Responsibilities**

Employees are responsible for:

- Taking authorized paid rest breaks whenever operationally feasible.
- Following all company break procedures.
- Accurately documenting each paid rest break in the QuickSolve application immediately upon returning from the break.
- Ensuring the QuickSolve entry accurately reflects the actual break taken using the designated break documentation feature and the appropriate time selection available within the application.
- Accurately documenting work hours, meal periods, sign-in/sign-out, geofencing, mileage, and other required employment records.
- Immediately notifying their supervisor if they are unable to take a required rest break because of operational or client-related circumstances.
- Promptly reporting any QuickSolve or technical issue that prevents accurate documentation.

Employees shall not complete rest break documentation before taking the break or delay documentation until the end of the work shift except when prevented by technical issues or emergency operational circumstances.

Employees are prohibited from falsifying work hours, break records, meal period records, mileage, geofencing information, sign-in/sign-out records, or any other employment documentation.

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## **Supervisor Responsibilities**

Supervisors are responsible for:

- Scheduling work assignments that reasonably permit employees to take authorized paid rest breaks.
  - Monitoring compliance with this policy.
  - Reviewing QuickSolve documentation for completeness and accuracy.
  - Following up regarding missing, inaccurate, or incomplete documentation.
  - Responding promptly when employees report missed or interrupted rest breaks.
  - Assisting employees in resolving operational barriers that interfere with break compliance.
  - Ensuring employees receive policy training during orientation and annual compliance training.
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## **Documentation Requirements**

QuickSolve is the official workforce management, scheduling, and time documentation system for My Life Services, Inc.

Employees are responsible for accurately documenting required work activities using QuickSolve.

Required documentation includes, as applicable:

- Scheduled work hours
- Actual work hours
- Employee sign-in
- Employee sign-out
- Geofencing verification
- Mileage
- Meal periods
- Paid rest break documentation
- Other required scheduling or payroll documentation

Employees shall document each paid rest break immediately upon returning from the break. Documentation must accurately reflect the actual break taken and utilize the designated QuickSolve rest break feature and appropriate time selection.

Accurate, contemporaneous documentation is essential to maintaining accurate payroll records and compliance with company policy and applicable wage and hour laws.

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## **Missed or Interrupted Rest Breaks**

If an employee is unable to take a paid rest break or if a break is interrupted because of an emergency, operational necessity, or client need, the employee shall notify their supervisor as soon as practical.

Supervisors will review the circumstances, document the reason for the missed or interrupted break, and determine whether operational changes are necessary to improve future compliance.

Employees are encouraged to report missed or interrupted rest breaks without fear of retaliation.

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## **Non-Retaliation**

My Life Services, Inc. strictly prohibits retaliation against any employee who:

- Takes or requests a paid rest break.
- Reports a missed, delayed, or interrupted rest break.
- Reports payroll or timekeeping concerns.
- Reports violations of this policy in good faith.

Employees who believe they have experienced retaliation should report the concern to their Supervisor, Program Director, Human Resources, or Executive Management.

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## **Training**

All employees will receive training regarding this policy:

- During New Employee Orientation.
- Whenever the policy is revised.
- During annual compliance training.
- Whenever QuickSolve documentation procedures are modified.

Employees are required to acknowledge receipt of this policy and complete all required training.

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## **Compliance**

Compliance with this policy is a condition of employment.

Failure to comply with this policy, including the failure to accurately document paid rest breaks, meal periods, work hours, mileage, geofencing, sign-in/sign-out activities, or other required employment records, may result in corrective action, up to and including termination of employment, consistent with company policy.

My Life Services, Inc. is committed to providing employees with legally compliant rest breaks, maintaining accurate payroll and timekeeping records, and fostering a culture of accountability, compliance, and high-quality services for the individuals we support.

## My Life Services, Inc.

### Standard Break and Meal Period Schedule

(Based on a 9:00 a.m. Shift Start)

| Hours Worked                             | Required Breaks                                                                                                              | Standard Timing                                                                                                                                                                                                                                                                                                                                                                                                  |
|------------------------------------------|------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>3.5 hours or less</b>                 | No rest break or meal period required.                                                                                       | None required.                                                                                                                                                                                                                                                                                                                                                                                                   |
| <b>More than 3.5 hours up to 5 hours</b> | One paid 10-minute rest break.                                                                                               | <b>First Rest Break:</b> Should be taken by <b>11:00 a.m., but no later than 12:00 p.m.</b>                                                                                                                                                                                                                                                                                                                      |
| <b>More than 5 hours up to 6 hours</b>   | One paid 10-minute rest break and one 30-minute unpaid meal period <b>unless a valid Meal Period Waiver has been signed.</b> | <b>First Rest Break:</b> Should be taken by <b>11:00 a.m., but no later than 12:00 p.m.</b><br><b>Meal Period (if not waived):</b> Should begin by <b>1:00 p.m., but no later than 2:00 p.m.</b>                                                                                                                                                                                                                 |
| <b>More than 6 hours up to 8 hours</b>   | Two paid 10-minute rest breaks and one 30-minute unpaid meal period.                                                         | <b>First Rest Break:</b> Should be taken by <b>11:00 a.m., but no later than 12:00 p.m.</b><br><b>Meal Period:</b> Should begin by <b>1:00 p.m., but no later than 2:00 p.m.</b><br><b>Second Rest Break:</b> Should be taken by <b>3:30 p.m., but no later than 4:30 p.m.</b>                                                                                                                                   |
| <b>More than 8 hours up to 10 hours</b>  | Two paid 10-minute rest breaks and one 30-minute unpaid meal period.                                                         | Same schedule as above.                                                                                                                                                                                                                                                                                                                                                                                          |
| <b>More than 10 hours up to 12 hours</b> | Three paid 10-minute rest breaks and two 30-minute unpaid meal periods, unless the second meal period is lawfully waived.    | <b>First Rest Break:</b> By <b>11:00 a.m., but no later than 12:00 p.m.</b><br><b>First Meal Period:</b> By <b>1:00 p.m., but no later than 2:00 p.m.</b><br><b>Second Rest Break:</b> By <b>3:30 p.m., but no later than 4:30 p.m.</b><br><b>Second Meal Period:</b> By <b>6:00 p.m., but no later than 7:00 p.m.</b><br><b>Third Rest Break:</b> By <b>8:00 p.m., or midway through the final work period.</b> |

## Important Explanation

Employees who work **5 hours or less** are **not required** to take a meal period.

Employees who work **more than 5 hours but no more than 6 hours** are ordinarily required to take a 30-minute unpaid meal period. However, California law permits the employer and employee to **mutually waive** the meal period if:

- The total workday does **not exceed 6 hours**, and
- Both the employee and My Life Services, Inc. have signed a valid **First Meal Period Waiver**.

If a meal period is required because no waiver exists, or because the employee is scheduled to work **more than 6 hours**, the meal period **must begin no later than the end of the employee's fifth hour of work**.

### Example:

- Shift Start: **9:00 a.m.**
- Five hours worked: **2:00 p.m.**

If the employee will work beyond 2:00 p.m. and does not have a valid waiver (or is working more than 6 hours), the meal period **must begin no later than 2:00 p.m.**

# My Life Services, Inc.

## California First Meal Period Waiver Agreement

(For Employees Scheduled to Work Six (6) Hours or Less)

Employee Name: \_\_\_\_\_

Position: \_\_\_\_\_

Supervisor: \_\_\_\_\_

California law requires employers to provide a thirty (30) minute unpaid meal period to employees who work more than five (5) hours in a workday. However, when an employee's total workday will not exceed six (6) hours, the meal period may be waived by mutual written consent of the employee and employer.

By signing this agreement, I acknowledge and agree to the following:

- My scheduled workday may occasionally exceed five (5) hours but will not exceed six (6) hours.
- I voluntarily agree to waive my thirty (30) minute unpaid meal period on any workday in which my total scheduled work time does not exceed six (6) hours.
- I understand this waiver is entirely voluntary and is not a condition of employment.
- I understand that I may request to take my meal period instead of waiving it on any eligible workday.
- I understand that I may revoke this waiver at any time by providing written notice to My Life Services, Inc. Revocation will become effective as soon as administratively practicable.
- I understand that if I work more than six (6) hours on any workday, this waiver is automatically void for that day, and I must begin a thirty (30) minute uninterrupted unpaid meal period no later than the end of my fifth (5th) hour of work.

I certify that I have had the opportunity to ask questions regarding this waiver and understand my rights under California law.

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Employee Signature: \_\_\_\_\_

Date: \_\_\_\_\_

Supervisor/Management Representative: \_\_\_\_\_

Date: \_\_\_\_\_



# My Life Services, Inc.

## Meal and Rest Period Policy & QuickSolve Acknowledgement

Employee Name: \_\_\_\_\_

Position: \_\_\_\_\_

Supervisor/Trainer: \_\_\_\_\_

I acknowledge that I have received, reviewed, and understand the My Life Services, Inc. Meal and Rest Period Policy and have been trained on the Company's QuickSolve timekeeping and compliance system.

I understand and acknowledge the following:

### Meal Periods

- If I work more than five (5) hours in a workday, I am generally entitled to an uninterrupted thirty (30) minute unpaid meal period.
- Unless I have signed a valid First Meal Period Waiver and my total workday does not exceed six (6) hours, my meal period must begin **no later than the end of my fifth (5th) hour of work.**
- During my meal period, I will be completely relieved of all work duties and will perform no work unless specifically authorized in accordance with Company policy.

### Rest Periods

- I am authorized and permitted to take paid ten (10) minute rest breaks in accordance with California law and Company policy.
- Rest breaks should be taken as scheduled by my supervisor and as close as practicable to the middle of each work period.

### QuickSolve Documentation

I understand it is my responsibility to accurately document my work time using the Company's QuickSolve system.

This includes:

- Clocking out at the beginning of each unpaid meal period.
- Clocking back in immediately upon returning from each unpaid meal period.
- Recording meal periods accurately.
- Recording paid rest breaks using the designated QuickSolve feature immediately upon returning from the break.
- Accurately recording my work hours, sign-in/sign-out times, mileage, and other required timekeeping information.

## **Reporting Concerns**

I understand that My Life Services, Inc. prohibits retaliation against any employee for reporting missed, late, shortened, interrupted, or denied meal or rest periods.

If I am unable to take a required meal or rest period, or if my break is interrupted for any reason, I will notify my supervisor or Human Resources as soon as possible, preferably on the same workday.

## **Employee Certification**

I certify that I have:

- Received the Company's Meal and Rest Period Policy.
- Received training regarding California meal and rest period requirements.
- Received training on the QuickSolve timekeeping system.
- Had an opportunity to ask questions.
- Understand my rights and responsibilities regarding meal periods, rest periods, and timekeeping.
- Agree to comply with all Company policies regarding meal periods, rest periods, and accurate timekeeping.

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**Employee Signature:** \_\_\_\_\_

**Date:** \_\_\_\_\_

**Trainer/Supervisor Signature:** \_\_\_\_\_

**Date:** \_\_\_\_\_

